

SOTOMAYOR, J., dissenting

(1974). According to the majority, however, any incursion on Executive power is too much. When presumptive immunity is this conclusive, the majority's indecision as to "whether [official-acts] immunity must be absolute" or whether, instead, "presumptive immunity is sufficient," *ante*, at 606, hardly matters.

Maybe some future opinion of this Court will decide that presumptive immunity is "sufficient," *ibid.*, and replace the majority's ironclad presumption with one that makes the difference between presumptive and absolute immunity meaningful. Today's Court, however, has replaced a presumption of equality before the law with a presumption that the President is above the law for all of his official acts.

Quick on the heels of announcing this astonishingly broad official-acts immunity, the majority assures us that a former President can still be prosecuted for "unofficial acts." *Ante*, at 615. Of course he can. No one has questioned the ability to prosecute a former President for unofficial (otherwise known as private) acts. Even Trump did not claim immunity for such acts and, as the majority acknowledges, such an immunity would be impossible to square with *Clinton v. Jones*, 520 U.S. 681 (1997). See *ante*, at 615. This unremarkable proposition is no real limit on today's decision. It does not hide the majority's embrace of the most far-reaching view of Presidential immunity on offer.

In fact, the majority's dividing line between "official" and "unofficial" conduct narrows the conduct considered "unofficial" almost to a nullity. It says that whenever the President acts in a way that is "not manifestly or palpably beyond [his] authority," he is taking official action. *Ante*, at 618 (quoting *Blassingame v. Trump*, 87 F. 4th 1, 13 (CADDC 2023)). It then goes a step further: "In dividing official from unofficial conduct, courts may not inquire into the President's motives." *Ante*, at 618. It is one thing to say that motive is irrelevant to questions regarding the scope of civil liability, but it is quite another to make it irrelevant to questions re-